



Republic of the Philippines
Province of Surigao del Sur
MUNICIPALITY OF CARMEN

POSTED:
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BY: **MA. JULINA B. JUTHI**
SR SECRETARY

TANGGAPAN NG SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 30TH REGULAR SESSION OF THE 14TH SANGGUNIANG BAYAN
OF CARMEN, SURIGAO DEL SUR HELD AT THE SB SESSION HALL, LEGISLATIVE BUILDING ON
FEBRUARY 24, 2026

PRESENT:

Hon. Jane V. Plaza Municipal Vice- Mayor/
Presiding Officer

REGULAR SANGGUNIANG BAYAN MEMBERS:

Hon. Carlos S. Estrada		SB Member
Hon. Harvey S. Manawatao		SB Member
Hon. Tanie A. Quillano		SB Member
Hon. Nilo S. Bigno		SB Member
Hon. Daniel A. Tejol		SB Member
Hon. Elvie U. Ohao		SB Member
Hon. Michael C. Escuyos		SB Member

EX-OFFICIO MEMBER:

Hon. Jeff Anthony D. Beloria SK Federation President

ON OFFICIAL BUSINESS:

EX-OFFICIO MEMBER:

Hon. Blandena V. Sugian ABC President

ON LEAVE:

REGULAR SANGGUNIANG BAYAN MEMBER:

Hon. Rencio P. Valeroso SB Member

ORDINANCE NO. 30
Series of 2026

**“AN ORDINANCE INSTITUTIONALIZING THE REGULAR DESILTING AND MAINTENANCE OF ALL RIVER
BEDS, CREEKS, CANALS, IRRIGATION, DRAINAGE AND SIMILAR WATERWAYS WITHIN THE
TERRITORIAL JURISDICTION OF THE MUNICIPALITY OF CARMEN, SURIGAO DEL SUR PRESCRIBING
RESPONSIBILITIES, STANDARDS AND PENALTIES FOR VIOLATIONS AND FOR OTHER PURPOSES”**

Author: Hon. Harvey S. Manawatao

Enacted: All Members Present

EXPLANATORY NOTE

WHEREAS, the 1987 Philippine Constitution recognizes the State’s responsibility to protect and
advance the right of the people to a balanced and healthful ecology in accord with rhythm and
harmony of nature;

WHEREAS, Republic Act No. 7160 otherwise known as the Local Government Code of 1991 mandates local government units to ensure the delivery of basic services including environmental management and flood control;

WHEREAS, Republic Act No. 9275 otherwise known as the Philippine Clean Water Act of 2004 requires local government units to implement measures for the protection, preservation and rehabilitation of water bodies within their territorial jurisdiction;

WHEREAS, numerous barangays of this municipality are flood prone due to desilted river beds, streams, creeks including clogged up irrigation and drainage canals that caused flooding in some areas during rainy season;

WHEREAS, siltation, garbage accumulation and illegal encroachments in river beds, creeks and canals reduce water flow capacity, increase flood risks, degrade water quality and harm aquatic ecosystems- posing threats to public safety and health in the Municipality of Carmen, Surigao del Sur;

WHEREAS, unregulated dumping of solid waste and construction materials into waterways exacerbates siltation and blocks natural drainage and irrigation systems particularly during rainy season;

WHEREAS, institutionalizing regular desilting and maintenance activities along with clear accountability mechanism, is necessary to ensure the long- term functionality of waterways and mitigate flood related damages;

WHEREAS, consultation with the Barangay Officials, the Municipal Engineering Office (MEO), the Municipal Environment and Natural Resources Office (MENRO), Municipal Disaster Risk Reduction and Management Office (MDRRMO) and community stakeholders has confirmed the urgent need for a structured desilting program;

BE IT ORDAINED, by the Sangguniang Bayan of Carmen, Surigao del Sur in Regular Session assembled, that:

Section 1. SHORT TITLE- This Ordinance shall be known as the "CARMEN WATERWAYS DESILTING AND MAINTENANCE ORDINANCE OF THE MUNICIPALITY OF CARMEN, SURIGAO DEL SUR."

Section 2. DECLARATION OF POLICY- It is hereby the policy of the Municipality of Carmen, Surigao del Sur to ensure the proper maintenance of all waterways to prevent flooding, protect water quality, preserve aquatic ecosystems and promote public safety. Regular desilting, clearing and rehabilitation of river beds, creeks, canals and similar water bodies shall be institutionalized as a core environmental management activity.

Section 3. DEFINITION OF TERMS-

- 1) Waterways- refers to all natural and man-made river beds, creeks, streams, canals, drainage, irrigation ditches and other channels that carry surface water within the municipality's jurisdiction.
- 2) Desilting- the process of removing accumulated silt, sand, gravel, rocks and other sediment from waterway beds to restore their original capacity.
- 3) Clearing- the removal of debris, trees, vegetation overgrowth, garbage, illegal structures from waterways and their buffer zones.
- 4) Buffer Zones- a strip of land measuring at least three (3) meters from the edge of all waterways, reserved for environmental protection and maintenance access.
- 5) Responsible Agency- the Municipal Engineering Office (MEO) in coordination with the Municipal Environment and Natural Resources Office (MENRO) and Municipal Disaster Risk Reduction and Management Office (MDRRMO).

Section 4. ESTABLISHMENT OF THE CARMEN WATERWAYS MAINTENANCE TASK FORCE-

A) Carmen Waterways Maintenance Task Force is hereby created to oversee the implementation of this Ordinance and composed of the following:

- Chairperson: - Municipal Mayor or any representative
- Vice Chairperson: - Municipal Planning and Development Coordinator
- Members: -
 - Municipal Engineer
 - Municipal Environment and Natural Resources Officer
 - DENR-CENRO
 - DPWH Representative
 - All Punong Barangays
 - Municipal Disaster Risk Reduction and Management Officer
 - PNP-MPS
 - Municipal Health Officer
 - Municipal Agriculturist
 - All Irrigators President
 - SK Federation President
 - CSO- FOC Federation President
 - Representative from the Private Sector-
 - Environmental Advocacy Organization

B) POWER AND FUNCTIONS-

- 1) Develop an annual desilting and maintenance work plan.
- 2) Conduct pre and post desilting assessments of all waterway capacity.
- 3) Coordinate with Barangays for community participation.
- 4) Monitor compliance with buffer zone regulations.
- 5) Submit annual performance reports to the Sangguniang Bayan.

Section 5. DESILTING AND MAINTENANCE SCHEDULE-

- 1) SEMI-ANNUAL DESILTING- all primary waterways, rivers and major creeks shall be desilted at least twice a year preferably in the month of April and October.
- 2) QUARTERLY CLEARING- all secondary waterways- irrigation and drainage canals and small streams shall be cleared of all unwanted materials, garbage, vegetation and the likes in the month of January, Aril, July and September.
- 3) EMERGENCY DESILTING- immediate desilting or clearing shall be conducted when waterways are blocked or when flood risks are high and susceptible as determined by the Carmen Waterways Maintenance Task Force.
- 4) WORK PLAN- The CWMTF shall submit a detailed annual work plan including budgetary requirements to the Sangguniang Bayan for approval.

Section 6. TECHNICAL STANDARDS-

- 1) **DESILTING REQUIREMENTS:**
 - a) Remove sediment until waterways original design depth and width are restored.
 - b) Dispose of excavated silt only at designated sites approved by the MENRO-CENRO.
 - c) No dumping in agricultural lands, public roads or other water bodies.
 - d) Treat silt contaminated with chemicals or waste before disposal in compliance with DENR standards.
- 2) **BUFFER ZONES REGULATIONS:**



- a) No construction, dumping or cultivation is allowed within the three (3) meters buffer zone.
- b) Existing illegal structures within the buffer zones must be removed within ninety (90) calendar days upon the effectivity of this Ordinance.
- c) Vegetation along buffer zones shall be limited to native species that prevent erosion without obstructing water flow.

3) WATER QUALITY PROTECTION:

- a) Desilting activities shall avoid disturbing aquatic life and shall be conducted in accordance with DENR's environmental compliance requirements.
- b) Temporary diversion of water flow during desilting shall be planned to minimize impact on downstream areas.

Section 7. RESPONSIBILITIES-

1) MUNICIPAL GOVERNMENT:

- a) Allocate annual budget for desilting, equipment and disposal.
- b) Procure services through administration.
- c) Conduct public information campaigns on proper disposal and waterways protection.

2) BARANGAY:

- a) Mobilize volunteers for quarterly clean up drives of waterways within their jurisdiction.
- b) Report immediately illegal logging activities, illegal dumping of garbage or encroachments to the CWMTF.
- c) Ensure the private and barangay level projects do not encroach on waterways or buffer zones.

3) PRIVATE INDIVIDUALS AND ESTABLISHMENTS:

- a) Refrain from dumping waste, construction materials or other debris into the waterways.
- b) Maintain proper drainage system on their properties to prevent silt runoff into waterways.
- c) Cooperate with desilting activities and remove any structures within the buffer zones.

4) COMMERCIAL ESTABLISHMENTS:

- a) Install silt traps and wastewater treatment facilities to prevent pollution and siltation.
- b) Submit annual reports on their water quality management measures to the Carmen Waterways Maintenance Task Force (CWMTF).

Section 8. FUNDING ALLOCATION- Funds from desilting and maintenance activities shall be sourced from:

- a) The 5% MDRRMF
- b) Grants from National Government – DENR, DPWH, DILG
- c) Public- Private Partnerships and donations
- d) Fines collected from violations of this Ordinance

Section 9. PENALTIES- Violations of this Ordinance shall be subject to the following penalties:

First Offense - Illegal dumping/encroachment

- 1) Individual- Stern Warning and a mandatory participation of a clean- up drive
- 2) Establishment- Stern Warning and a mandatory participation of a clean- up drive

Second Offense

- 1) Individual- A fine of One Thousand Pesos (Php1,000.00) and a mandatory participation of clean- up drive for two (2) successive quarters.
- 2) Establishments- A fine of Two Thousand Pesos (Php2,000.00) and a mandatory participation of clean- up drive for two (2) successive quarters.

Third Offense

- 1) Individual- A fine of One Thousand Five Hundred Pesos (Php1,500.00) and a mandatory participation of a clean- up drive for four (4) consecutive quarters.
- 2) Establishments- A fine of Two Thousand Five Hundred Pesos (Php2,500.00) and a mandatory participation of clean- up drive for four (4) consecutive quarters and a possible cancelation of business permit for a period of one (1) month.

Additional Penalty:

For non- compliance for the encroachment, an additional fine of Fifty Pesos (Php50.00) per day for Individual and an additional fine of One Hundred Pesos (Php100.00) per day for the Establishments shall be imposed. The responsible party shall also bear the cost of removing illegal structures or cleaning up of dumped materials.

Section 10. MONITORING AND REPORTING- The Carmen Waterways Maintenance Task Force (CWMTF) shall conduct a quarterly inspection, publish progress updates on the bulletin board. A public dissemination shall be done during the Barangay Assembly on waterway conditions to be held annually to gather feedback from stakeholders.

Section 11. SPECIAL PROVISIONS FOR FLOOD PRONE AREAS- For areas identified by the MDRRMO and the CWMTF as flood prone zones including low-lying areas in the barangays, areas adjacent to major rivers, streams and locations with historical flood records, the following additional guidelines shall apply.

11.1 DESIGNATION OF FLOOD PRONE ZONES:

- The CWMTF in coordination with the MPDO, the MDRRMO, the DPWH and other expert line agencies shall conduct a mapping survey to identify and delineate all Flood Prone Zones within the Municipality.
- Maps of designated zones shall be posted in Barangay Halls, Municipal Halls and be posted in LGU FB Page within thirty (30) days after the effectivity of this ordinance.
- Zones shall be classified into two (2) categories:
 - a) CATEGORY A: High Risk Areas- flooded during moderate rainfall
 - b) CATEGORY B: Medium Risk Areas- flooded during heavy rainfall of typhoons

11.2 ENHANCED DESILTING AND MAINTENANCE SCHEDULE:

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1) CATEGORY 'A' ZONES:

- Primary Waterways- as the need arises
- Secondary Waterways- as the need arises
- Pre-Typhoon Inspection and Clearing shall be done and conducted at least thirty (30) days before the start of the rainy season.

2) CATEGORY 'B' ZONES:

- Primary Waterways- as the need arises
- Secondary Waterways- as the need arises
- All Waterways in Flood Prone Zones shall be equipped with water level sensors and flow monitors to be maintained by the MDRRMO and the CWMTF

11.3 WATERWAYS CAPACITY ENHANCEMENT:

FOR CATEGORY 'A' ZONES:

- a) The CWMTF may recommend the widening or deepening of waterways subject to the DENR-CENRO environmental clearance to increase flood discharge capacity.
- b) All drainage outlets connecting to waterways in flood prone areas shall be fitted with debris screens to prevent blockages with monthly inspections with the Barangay Teams.
- c) Illegal encroachments in waterways and buffer zones in flood prone areas shall be removed within sixty (60) days upon receiving the notice.

11.4 COMMUNITYBASED FLOOD PREPAREDNESS:

- a) Each Barangay in a Flood Prone Zone shall establish a Barangay Waterways Maintenance Team (BWMT) composed of at least ten (10) trained volunteers.
- b) The CWMTF and the MDRRMO shall provide training to BWMT on flood monitoring, basic desilting techniques and emergency response procedures.
- c) Barangays shall conduct a monthly community clean up drives targeting waterways and drainage or irrigation systems within their flood prone areas with the support from the Municipal Government for equipment and supplies.

11.5 CONSTRUCTION RESTRICTIONS:

- a) No new residential, commercial or industrial structures as the case may be shall be built within five (5) meters of waterways in Category 'A' Zones.
- b) Existing structures in the extended buffer zone of Category 'A' Zones shall be prioritized for relocation.
- c) All new construction projects in flood prone zones shall be required to install an on-site rainwater collector system.

11.6 EMERGENCY RESPONSE PROTOCOLS:

- a) The CWMTF and the MDRRMO shall develop a Flood Prone Zone Response Plan outlining procedures for emergency desilting, waterway clearing and flood mitigation during heavy rainfall or typhoons.
- b) A 24/7 hotline shall be established for reporting blocked waterways or flood related hazards in designated zones.
- c) Utility companies operating in flood prone areas shall coordinate with the CWMTF to ensure that overhead wires and underground utilities are protected from flood damage during maintenance activities.

in
Duly
Signed

Section 12. IMPLEMENTING RULES AND REGULATIONS- The CWMTF shall promulgate an IRR within sixty (60) days upon the approval of this Ordinance, detailing work procedures, safety protocols, disposal guidelines and permit requirements for activities near the waterways.

Section 13. SEPARABILITY CLAUSE- If any of the provision of this Ordinance is declared invalid or unconstitutional, the remaining provision shall continue to be in full force and effect.

Section 14. REPEALING CLAUSE- All Ordinances, Resolutions, Executive Orders, Rules and Regulations or parts thereof inconsistent with this Ordinance are hereby repealed or modified.

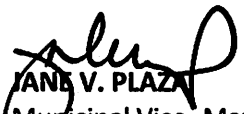
Section 15. EFFECTIVITY CLAUSE- This Ordinance shall take effect twenty-one (21) days after the posting in at least three (3) conspicuous places in the Municipality of Carmen, Surigao del Sur.

ENACTED this 24th day of February, 2026 at Carmen, Surigao del Sur.

I HEREBY ATTEST to the correctness of the foregoing Ordinance.


MA. JULINA T. BORDA-JUTILO, LLB., J.D.
Secretary to the Sangguniang Bayan

CERTIFIED CORRECT:


JANE V. PLAZA
Municipal Vice- Mayor/
Presiding Officer

APPROVED:


NESTOR S. VALEROSO
Municipal Mayor
02/27/2026